

Vineet Kumar v. State of U.P. And 2 Others

Allahabad High Court · Single Judge · 19 January 2022 · Writ - C No. 30578 of 2021 · **Writ petition disposed of; petitioner given liberty to apply to the Executive Engineer under Clauses 6.5 and 6.14 within two weeks; if filed, to be decided in accordance with law within four weeks of production of a certified copy**

HEADNOTE

Where a consumer's writ concerning an electricity bill is met by the licensee's submission that Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides for settlement of bill disputes and Clause 6.14 for payment of bills in instalments, and the consumer does not press the first prayer but seeks liberty to apply to the Executive Engineer, the High Court will not decide the bill. The petition is disposed of with liberty to move that officer under Clauses 6.5 and 6.14 within two weeks; if so moved, the Executive Engineer shall consider and decide the application in accordance with law within four weeks of production of a certified copy. The Court did not examine the bill, the first prayer, or entitlement to instalments, and granted no stay of coercive action.

FACTUAL SUMMARY

Vineet Kumar filed Writ-C No. 30578 of 2021 against the State of U.P. and two others, including the Executive Engineer as respondent no. 2. After listings from 22 November 2021 to 12 January 2022 — non-appearance on both sides, time sought twice to file an amendment application, and a virtual-hearing failure during the Omicron restrictions — the petition was heard on 19 January 2022.

Counsel for the respondents submitted that Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides for settlement of electricity-bill disputes and Clause 6.14 for payment of bills in instalments, so the petitioner might approach the Executive Engineer. The petitioner's counsel then did not press the first prayer of the writ and sought liberty to move that officer with an application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed electricity bill — Clause 6.5 application to the Executive Engineer as alternate remedy

QUESTION

Where the licensee points to Clause 6.5 for settlement of an electricity-bill dispute, will the writ court decide the bill or relegate the consumer to the Executive Engineer?

HOLDING

The writ court will not decide the bill. On the respondents' submission that Clause 6.5 provides for settlement of electricity-bill disputes, and the petitioner not pressing the first prayer, the petition is disposed of with liberty to approach the Executive Engineer-respondent no. 2 and move an application for settlement of the electricity bill under Clause 6.5 within two weeks. If such an application is filed, respondent no. 2 shall consider and decide it in accordance with law within four weeks from production of a certified copy of the order. ¶ [order of 19.1.2022](#)

QUALIFIER

No stay of coercive action. The first prayer was not pressed and is not identified in the order. The Court did not itself correct the bill.

FLAG Source PDF concatenates seven sittings of Neeraj Tiwari, J.: listings of 22.11.2021, 2.12.2021, 9.12.2021, 16.12.2021 (three days to file an amendment application), 5.1.2022 (one further week for the same), 12.1.2022 (virtual-mode failure), and the 19.1.2022 disposal. Pins refer to that disposal. The amendment application is never recorded as filed. Respondent no. 2 is the Executive Engineer; respondent no. 3 is the other electricity respondent. No amount, connection number, or text of the first prayer appears.

HOLDING-UNIT · UP-2005::6.14

instalment facility — application to the Executive Engineer, not structured by the writ court

QUESTION

Where the licensee also points to Clause 6.14 for payment of electricity bills in instalments, will the writ court itself grant instalments?

HOLDING

No. Clause 6.14 was treated as a Code remedy to be invoked before the Executive Engineer together with the Clause 6.5 bill-settlement application. Liberty was given to move that officer under both clauses within two weeks; the Court did not structure instalments or decide entitlement to them. ¶ [order of 19.1.2022](#)

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was not decided on the bill. After the first prayer was not pressed, the consumer was remitted to a time-bound Clause 6.5 application before the Executive Engineer. ¶ [order of 19.1.2022](#)

clause-6.5-statutory-remedy-disputed-bill The Court accepted the respondents' submission that Clause 6.5 provides for settlement of electricity-bill disputes and left that dispute to the Executive Engineer in accordance with law. ¶ [order of 19.1.2022](#)

clause-6.5-representation-executive-engineer Liberty was given to approach the Executive Engineer-respondent no. 2 within two weeks; if an application is filed, that officer shall consider and decide it within four weeks of production of a certified copy. ¶ [order of 19.1.2022](#)

installment-payment-clause-6.14 Clause 6.14 was treated as the Code path for payment of electricity bills in instalments, to be applied for before the Executive Engineer; the Court did not itself grant an instalment schedule. ¶ [order of 19.1.2022](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE ELECTRICITY BILL

Left to the Executive Engineer on a Clause 6.5 application, to be decided in accordance with law. The order records no amount. ¶ [order of 19.1.2022](#)

NOT DECIDED — ENTITLEMENT TO PAYMENT OF THE BILL IN INSTALMENTS UNDER CLAUSE 6.14

The Court did not grant or refuse instalments; it remitted a 6.14 application to respondent no. 2. ¶ [order of 19.1.2022](#)

NOT DECIDED — THE FIRST PRAYER OF THE WRIT PETITION

Expressly not pressed. The order does not identify that prayer. ¶ [order of 19.1.2022](#)